

Name :

Day-3

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Q-3) Discuss how the Government of India Act, 1935 laid the Constitutional foundation of the modern Indian state, which Key features of this act were ^{later} retained in the Indian Constitution?

Answer:- The Government of India Act, 1935 laid the Constitutional foundation of modern Indian state because several provisions of this act are incorporated into our Constitution such as federalism, division of power, judicial system, civil services etc. This act was a step towards complete responsible government in India.

Act of 1935 as the Constitutional foundation of modern India

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① Political structure

(a) Federalism system of Indian government.

↳ Upper House
↳ Lower House

(b) Separation of Powers between legislative, executive, judiciary

(c) Division of power

↳ Union list, state list & Concurrent.

(d) Bicameralism

② Administrative system

The provision of Union and state Public Service Commission are derived from the act of 1935.

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③ Judicial system

↳ establishment of Supreme Court, evolved from the Federal court (1937).

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Key features of the Act of 1935 retained in the Indian Constitution

① Federal features → Part XI of our Constitution

Though the establishment of All India Federation, ^{under act of 1935} was never implemented, but it is adopted later in governance

② Division of Powers between Union and states

↓
In 7th Schedule of Constitution
↳ Union list, state list, concurrent list.

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③ Adoption of Public Service Commission — Part XIV

④ Office of governor (Part VI)

⑤ Emergency provisions (Part XVIII)

⑥ Establishment of Supreme Court (Part - V)

⑦ Adoption of bicameral legislature.

Thus, the government of India Act, 1935 shaped the administrative, political and judicial structure of India and hence it served as the Blueprint of Indian Constitution.

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